a. m., March 24, 1947; that a copy of this order and direction be served upon the State railroad regulatory bodies of the States of Kansas, Arkansas, Oklahoma, and Texas, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)–(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 47-2862; Filed, Mar. 26, 1947; 8:54 a. m.]

PROPOSED RULE MAKING

FEDERAL POWER COMMISSION

[18 CFR, Part 167]

[Docket No. R-102]

DETERMINATION OF SERVICE AREAS OF NATURAL GAS COMPANIES

NOTICE OF PROPOSED RULE MAKING

MARCH 21, 1947.

1. Notice is hereby given of proposed rule making in the above-entitled matter.

2. It is proposed to adopt a general rule with respect to the determination of service areas of natural-gas companies subject to the jurisdiction of the Commission under the Natural Gas Act, as amended, to permit these companies to make, without further authorization from the Commission, certain enlargements or extensions of their facilities for the purpose of supplying increased market demands in the areas being served by the companies under certificates of public convenience and necessity issued by the Commission. This rule is proposed to be issued pursuant to the authority permitted the Federal Power Commission by the Natural Gas Act, as amended, particularly sections 7 (f) and 16 thereof (52 Stat. 824, 56 Stat. 83, 52 Stat. 830, 15 U. S. C. and Sup. 717f, 15 U. S. C. 717o).

3. Many different and conflicting situations are involved in determining a service area for each natural-gas company under section 7 (f). Because of the evident need for careful study and investigation of these problems, and the lack of manpower which could be assigned to this matter under the war-time conditions existing for several years after the passage of the 1942 amendments of section 7, it has been necessary for the Commission to defer this work. Recognizing the need, however, as soon as conditions might permit, for giving effect on a reasonable basis to the intent of section 7 (f), the Commission has had this subject under active consideration during the past year, particularly in connection with its Natural Gas Investigation in Docket No. G-580. From this investigation it has become clear that the intent of Congress as expressed in section 7 (f) can be effectuated, and the administration of the certificate provisions of section 7 can be facilitated in the public interest, if service-area authorizations are granted at this time by a general rule of uniform applicability rather than by separate proceedings conducted for the purpose of determining a service-area authorization for each natural-gas company individually.

4. The provisions of the rule proposed herein are substantially as outlined in the staff report on this subject relative to the Natural Gas Investigation in Docket No. G-580, entitled "Administration of the Certificate Provisions of Section 7 of the Natural Gas Act," which was submitted for comment to natural-gas companies and other interested parties under date of January 17, 1947, with replies requested as of February 15, 1947.

5. In accordance, therefore, with the intention of Congress, as expressed in section 7 (f), to provide, at the discretion of the Commission, reasonable latitude to natural-gas companies to enlarge and extend their facilities for the purpose of supplying increased requirements of the markets which they serve, the Commission proposes in the public interest to adopt a general rule with respect to the determination of service areas of natural-gas companies and to issue such rule as a new part of subchapter E, Regulations under Natural Gas Act, Chapter I of Title 18, Code of Federal Regulations, said new part to provide as follows:

PART 167—ENLARGEMENT OR EXTENSION OF FACILITIES TO SUPPLY INCREASED MARKET DEMANDS IN SERVICE AREAS OF NATURAL GAS COMPANIES

§ 167.1 *Service areas defined.* For the purpose of administering section 7 (f) of the Natural Gas Act by general authorization applicable to all natural-gas companies under the Act, a service area of a natural-gas company is an area of service defined as follows: (a) The service rendered to existing customers and markets, and the facilities certificated or authorized therefor; (b) a 10-percent increase of the total service rendered to existing customers and markets within any calendar year, and the facilities required therefor; (c) subject to the foregoing limits, service to new customers who will receive not more than 75,000 Mcf each per year, and the facilities required therefor; and (d) any additional facilities for improving service and replacing equipment which will not increase the delivery capacity of the transmission system, all of the foregoing as provided more specifically hereinafter.

§ 167.2 *General authorization of 10 percent annual increase in system daily delivery capacity.* Each natural-gas company subject to the jurisdiction of the Federal Power Commission under the Natural Gas Act, as amended, is hereby authorized to enlarge or extend its facilities so as to increase the daily delivery capacity of its transmission system to a maximum extent of 10 percent in any calendar year for the purpose of supplying the increased requirements of customers being served under certificates of public convenience and necessity issued by the Commission, and minor new customers as hereinafter specified.

(a) *Capacity increase in 1947.* In determining the maximum increase in delivery capacity permissible for the year 1947 under the authorization herein granted, a natural-gas company shall use 10 percent of the installed delivery capacity of its transmission system, calculated as of the effective date of this order. Within thirty days of such date, each natural-gas company affected by this order shall file with the Commission a statement of the installed delivery capacity of its system as of the effective date of this order, together with such explanation as may be necessary of the method of formula by which such capacity has been determined.

(b) *Capacity increase after 1947.* The authorization for each year thereafter shall be based upon the installed capacity as of January 1 of the calendar year during which the additions are to be made. Within thirty days after the beginning of each calendar year, any natural-gas company affected by this authorization shall file with the Commission a statement of the installed delivery capacity of its system as of January 1 of that year, together with such explanation as may be necessary of the method or formula by which such capacity has been determined.

(c) *Types of facilities authorized.* The authorization granted herein, as limited above, shall extend to all facilities which are to be installed for the purpose of increasing the delivery capacity of the natural-gas company's transmission system, including such facilities as additional pipe lines, compressors, compressor stations and any other facilities which increase the capacity of the transmission system or any part thereof.

(d) *Notice of intention required.* A natural-gas company desiring to enlarge its facilities under the authorization granted herein shall file with the Commission at least thirty days prior to the commencement of the construction of such additional facilities written notification of its intention so to do, and shall include in such notice a concise description of the facilities proposed; a map showing their location; the capacity increase contemplated; the additional gas reserves, if any, to be dedicated; the reasons for the installation; the estimated cost of the facilities; the method of financing; the proposed date of begin-

ning of construction; and the date at which the construction is expected to be completed and placed in operation.

(e) *General authorization may be suspended.* The Commission reserves the right to suspend the operation of the general authorization granted herein, with reference to any proposed enlargement or extension of facilities, and to require a natural-gas company to file an application in accordance with the provisions of section 7 of the Natural Gas Act, as amended, and to obtain a certificate of public convenience and necessity prior to undertaking the construction, extension or operation of facilities which otherwise might have been constructed in accordance with the authorization granted herein.

§ 167.3 *General authorization of additional types of facilities.* In addition to the authorization hereinbefore granted, a natural-gas company is further authorized to install and operate the following types of facilities:

(a) *Auxiliary facilities.* All necessary auxiliary facilities which do not increase the transmission system delivery capacity, such as, for example, scrubbers, dehydration equipment, electrical equipment in compressor stations, water pipe lines and cooling equipment at pumping stations, incidental buildings and structures, and similar facilities.

(b) *Connecting facilities for minor new customers.* Incidental connecting facilities which are necessary to extend natural-gas service to minor new customers, for their own consumption or for resale, whose annual consumption in each instance will not exceed 75,000 Mcf—such as villages, "farm taps," alfalfa drying plants, drilling and pumping requirements in gas or oil fields, and the like in rural areas adjacent to the transmission lines of a natural-gas company. All such customers added during each year shall be reported annually in a supplement to Schedule 434 of F. P. C. Form No. 2.

(c) *Replacement or relocation of facilities.* Facilities which constitute the replacement or relocation of existing facilities in service, where no reduction or abandonment of a general service or service to a particular customer is involved.

(d) *Additional metering points and lateral lines.* Facilities necessary to the establishment of additional metering points or lateral lines required for service to customers in local communities already being served.

§ 167.4 *Reservations as to rate and accounting requirements.* The authorizations granted herein are without prejudice to future determinations by the Commission in proceedings involving accounting requirements or the fixing of rates of natural-gas companies; and the construction and operation of facilities under these authorizations shall not constitute an acceptance by the Commission that all such facilities are necessary in the operations of a natural-gas company.

§ 167.5 *Subsequent actions not precluded.* The authorizations granted herein will not preclude the consideration of any subsequent actions which may be shown to be appropriate in order to effectuate the purposes of section 7 (f) of the Natural Gas Act, as amended.

6. Interested persons are given until April 21, 1947, to submit written statements or briefs setting forth their comments, views and suggestions with respect to this proposed rule.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 47-2863; Filed, Mar. 26, 1947; 8:50 a. m.]

NOTICES

TREASURY DEPARTMENT

United States Coast Guard

[CGFR 47-9]

APPROVAL AND TERMINATION OF APPROVAL OF EQUIPMENT

Correction

In Federal Register Document 47-1957, appearing at page 1466 of the issue for Tuesday, March 4, 1947, the first line of the paragraph under the heading "Winch" should read "Landley Type WH-5 electric boat".

DEPARTMENT OF JUSTICE

Office of Alien Property

AUTHORITY: 40 Stat. 411, 55 Stat. 839, Pub. Laws 322, 671, 79th Cong., 60 Stat. 50, 925; 50 U. S. C. and Supp. App. 1, 616; E. O. 9193, July 6, 1942, 3 CFR, Cum. Supp., E. O. 9567, June 8, 1945, 3 CFR, 1945 Supp., E. O. 9788, Oct. 14, 1946, 11 F. R. 11981.

[Vesting Order 8393]

CARL H. RICHTER

In re: Estate of Carl H. Richter, deceased. File D-28-11152; E. T. sec. 15563.

Under the authority of the Trading with the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Mrs. Anna Widmann, whose last known address is Germany, is a resident of Germany and a national of a designated enemy country (Germany);

2. That all right, title, interest and claim of any kind or character whatsoever of the person named in subparagraph 1 hereof in and to the estate of Carl H. Richter, deceased, is property payable or deliverable to, or claimed by, the aforesaid national of a designated enemy country (Germany);

3. That such property is in the process of administration by Charles F. Roeckel, 35 Prospect Park West, Brooklyn, New York, as executor, acting under the judicial supervision of the Surrogate's Court, Steuben County, Bath, New York;

and it is hereby determined:

4. That to the extent that the person named in subparagraph 1 hereof is not within a designated enemy country, the national interest of the United States requires that such person be treated as a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on March 6, 1947.

For the Attorney General.

[SEAL] DONALD C. COOK,
Director.

[F. R. Doc. 47-2869; Filed, Mar. 26, 1947; 8:50 a. m.]

[Vesting Order 8468]

TOKIZO KATAYAMA AND KUMAICHI TAKENAGA

In re: Personal property owned by the personal representatives, heirs, next of kin, legatees and distributees of Tokizo Katayama, deceased, and personal property owned by the personal representatives, heirs, next of kin, legatees and distributees of Kumaichi Takenaga, deceased.

Under the authority of the Trading with the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That the personal representatives, heirs, next of kin, legatees and distributees of Tokizo Katayama, deceased, who there is reasonable cause to believe are residents of Japan, are nationals of a designated enemy country (Japan);

2. That the personal representatives, heirs, next of kin, legatees and distributees of Kumaichi Takenaga, deceased, who there is reasonable cause to believe are residents of Japan, are nationals of a designated enemy country (Japan);